

SUSPENSION AND RESUMPTION OF CRIMINAL PROCEEDINGS**Bobokhonov Akramkhon Alokhonovich**

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Annotation: This article discusses the current issues of the institution of suspension and resumption of criminal proceedings. The decision to suspend criminal proceedings in judicial investigative activities is often taken. In recent years, there has been a sharp differentiation in the dynamics of suspended criminal cases. Despite the fact that this institution has existed in criminal procedure law for a long time, some theoretical problems related to the basics and procedural procedure for suspending and resuming a criminal case have not yet been solved. Unresolved issues objectively cause different approaches in law enforcement practice.

Key words: criminal proceedings, procedural deadlines, suspension, resumption, reasonable time, personal rights.

The institution of suspension and restoration of criminal proceedings is one of the institutions that has a special place in the theory of procedural law. The issue of stopping and resuming criminal proceedings remains the focus of modern procedural scientists. Although in some countries of the world it is not allowed to suspend criminal cases, in most of them the rules of suspension and resumption of criminal cases are in force due to the fact that proceedings are limited by specific procedural terms.

The criminal process as a complete process is characterized by the actions performed by specific procedural participants, the decisions made by them, and the deadlines set within the framework of the procedural law. These elements, in turn, ensure that procedural activities are carried out in one system. According to this, every criminal case must be concluded through justice. But it cannot be denied that at almost all stages of the criminal proceedings, there may be circumstances that hinder or impede the proceedings. There are objective and subjective reasons for this. Examples of such cases include suspension of proceedings, investigative

actions and other procedural actions. All this is done within the framework of criminal proceedings.

If we pay attention to the statistical data, we can see that the number of suspensions and resumptions of proceedings by investigative bodies and courts has increased slightly in 2020-2021. The main factor of this is the quarantine of the COVID-19 pandemic introduced on a global scale [1]. By 2022-2023, this indicator had a downward trend.

In criminal-procedural legislation, the termination of a criminal case can be found in the preliminary investigation (Articles 364-371 of JPK), inquiry (Article 3819 of JPK), appointment for trial (Articles 399-400 of JPK), trial (Articles 420-4201 of JPK) possible

In fact, in accordance with Article 364 of the Criminal Procedure Code, the grounds and procedure for stopping the preliminary investigation are mentioned, including 1) the fact that a person who should be involved as an accused in the case has not been identified; 2) the whereabouts of the accused are unknown; 3) cases where the accused has left the territory of the Republic of Uzbekistan, and it is not possible to ensure his arrival for investigation; 4) it is suspended in cases where the accused has a severe and persistent but curable illness that precludes his participation in the proceedings. It is important to note that despite the quarantine and emergency situations that have been in force for approximately two years, these situations are not defined in the criminal procedural law as a basis for suspending the criminal proceedings.

In accordance with Article 371 of the Criminal Procedure Code, the resumption of the preliminary investigation of a suspended criminal case is strengthened as a basis for the suspension of the investigation when the specified circumstances are eliminated and there is a need to conduct additional investigative actions that can be performed without the participation of the accused in the case.

Analyzing some cases in the criminal procedural law, the problems of the institution of stopping and resuming the criminal case were determined on the basis of the following:

First of all, in the scientific literature that examines the Criminal Procedure Code or related rules of conduct of criminal cases, there are various scientific discussions about the concept, content and essence, grounds and conditions of suspension of criminal proceedings, resumption of a suspended criminal case, actions of an investigator in a suspended criminal case. . Finding a solution to such debates requires analysis, generalization and systematization of scientific approaches and theoretical ideas about the legal concept, significance and essence of stopping and resuming criminal proceedings in the theory of criminal procedure;

Secondly, the issue of suspension and resumption of criminal proceedings is of urgent importance from a practical point of view. Despite the fact that the Republic of Uzbekistan is a member of several international organizations that fight against crime, in some cases, ensuring the direct participation of the accused and defendants in criminal cases, proving the circumstances related to the accusation without their participation creates difficulties in the activities of state bodies and officials responsible for criminal proceedings;

Thirdly, there is no uniform approach or clear rules about whether it is possible to conduct a criminal case without the participation of the accused or the defendant, who are considered to be the main participants in the proceedings of a single criminal case.

Fourthly, the procedural form of suspension of criminal proceedings, the guarantee of the rights and freedoms of persons interested in the case are not sufficiently defined in the criminal procedural norms, the necessity of carrying out certain investigative actions in connection with the suspended criminal case is not taken into account.

It is important to analyze the issues of stopping the criminal case together with the issues of its recovery.

Recovery of a criminal case is an integral part of the institution of stopping criminal proceedings. There are various scientific and theoretical discussions on this topic in scientific sources. In particular, according to M.S. Egorova, "suspension and resumption of criminal proceedings are different from each other. The cases that arise in the application of these norms are not connected to each other and cannot replace each other. The restoration of the criminal case as an institution performs three independent actions: the restoration of the suspended criminal case; reinstatement of a closed criminal case; "Reopening the criminal case based on newly discovered cases" [2].

First of all, it should be noted that the words "termination" and "restoration" are related and inseparable in Criminal Procedure Law. Because the reconstruction of the criminal case is considered an integral component of the institution of the termination of the criminal case, and in the implementation of the tasks of this institution, these two activities are interdependent and form a single institution.

Chapter 45 of the Criminal Procedure Code defines the grounds and conditions for stopping and resuming a criminal case. In particular, according to Article 371 of the Criminal Procedure Code, the resumption of criminal proceedings is expressed on the following grounds.

1. When the circumstances provided for in Article 364 of this Code as a basis for stopping the inquiry and investigation are eliminated;

2. The case shall be renewed when it is necessary to carry out additional investigative actions, which can be carried out without the participation of the accused.

If the decision to stop the preliminary investigation is inconsistent with the law, the prosecutor can cancel it and issue a decision to resume the preliminary investigation, and the criminal proceedings will be resumed with the decision of the court (resumption of the case under Article 4201 of the Code of Criminal Procedure).

Resumption of the case when the reasons for stopping the investigation are eliminated, i.e. identification of the person who committed the crime, identification of the hiding place of the accused, taking measures to ensure the investigation of a person who is outside the territory of Uzbekistan, recovery of the accused from a serious and persistent but curable disease that precludes his participation in the proceedings will be the basis for

In addition, if there is a need to carry out certain investigative actions on a suspended criminal case, that is, it is the basis for issuing a decision on resuming the case for the purpose of performing additional investigative actions.

In this regard, legal scholar B.T. Bezlepkin stated that "the investigator is given the right to resume when there is a need to perform a new additional investigative action, even in cases where the grounds for suspension have not been eliminated in the legislation. As a result of additional investigative actions, there may be cases of elimination of grounds for suspension" [3]. At this point, it can be understood that there is a need to carry out additional investigative efforts in relation to the issue of eliminating some of the shortcomings that have been left.

Therefore, conducting additional investigative actions can be effective in eliminating suspended criminal cases in most cases.

The importance of the prosecutor's control over the legal and justified decision of the investigator in actions related to the resumption of criminal proceedings is very important. The prosecutor examines the legality and reasonableness of stopping and resuming criminal proceedings in each case. In this regard, the scientist A.S. Shaginyan makes the following points, that is, "before the prosecutor approves the decision to stop the criminal case, he should carefully study the case materials and discuss with the investigator the new evidence that can be obtained, and then decide to stop the criminal case or reopen the case. should allow to extend the period of recovery and investigation" [4].

In particular, based on procedural legal requirements, the prosecutor has the authority to cancel any illegal decision of the investigator.

However, the exact mechanism for revoking the decision to resume work has not been resolved in the legislation. If the case stopped by the investigator has not been completely eliminated, then the suspended case is considered to be unreasonably reinstated. Then the efforts of the inquirer, the investigator and the time of the inquiry and investigation will be wasted. Therefore, before making any procedural decision, it is necessary to be sure that the causes that have actually arisen have been completely eliminated. When making procedural decisions related to the restoration of the case, the investigator must pay serious attention, and the prosecutor's supervision is of particular importance in this regard.

At the same time, when issuing a decision on the restoration of a criminal case according to the first and second grounds of Article 364 of the Criminal Procedure Code, the investigator must pay special attention to the terms of criminal prosecution. According to Article 64 of the Criminal Code, if the term of prosecution has expired on the grounds that the person who should be involved as an accused has not been identified and the whereabouts of the accused are unknown, without reopening the criminal case, Article 84 of the Criminal Procedure Code, part one, 1- shall be terminated based on paragraph If, according to the second basis of Article 364 of the Code of Criminal Procedure, the person charged with criminal responsibility hides from the inquiry or investigation, the period will also be suspended. Also, the period is reset from the day the accused is arrested or pleads guilty.

Based on the above, it is worth noting that today in practice there are cases of unjustified annulment by the prosecutor of the decision issued by the investigator and investigators to stop the criminal case and resumption of the criminal case. It can be seen that in this case the period of inquiry and investigation has been wasted. For this reason, it is necessary to prevent unjustified cancellation of the decision to stop the criminal case by the prosecutor and unjustified decision to resume the criminal case. If this situation can be eliminated, the time spent on inquiry and investigation will be avoided.

Based on the results of the analyzed legal literature and scientific research, it was concluded that the existing problems in the legislation of countries with a continental legal system are similar [5, 6, 7].

In the national criminal-procedural legislation, the following proposals were developed in order to further improve the mechanisms of legal regulation of the process of stopping and restoring the criminal case.

1. Part one of Article 569 of the Criminal Procedure Code, "If the mental or other serious illness of the suspect, accused, or defendant is confirmed by the conclusion of an outpatient

examination or other medical documents, and to determine what kind of illness he is suffering from, to resolve the issue of his sanity and legal capacity, also, it is proposed to remove the phrase "other medical documents" from the rule that "if an inpatient examination is being conducted to choose a coercive medical measure, the proceedings may be suspended during the period of the person's placement in a medical institution, provided that there is no need to conduct other procedural actions".

2. It is proposed to fill in the second part of Article 369 of the Criminal Procedure Code in the following version:

"When the investigator stops the preliminary investigation, he informs the victim, the civil claimant, the civil defendant and their representatives about it and explains to them that they have the right to appeal against this decision."

3. It is proposed to complete the fourth part of Article 3819 of the Criminal Procedure Code in the following version:

"When the investigator stops the investigation, he informs the victim, the civil claimant, the civil defendant and their representatives about this and explains to them that they have the right to appeal against this decision."

4. It is proposed to fill the third part of Article 399 and the fourth part of Article 420 of the Criminal Procedure Code in the following wording:

"After the court stops the case, it informs the victim, the civil plaintiff, the civil defendant and their representatives about it and explains to them that they have the right to appeal against this decision."

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